

TRUSTS

IN RE: 1988 GIVLER LIVING TRUST

CASE NUMBER: 23PB-0031977

This matter is on calendar for hearing on a Petition to Approve First and Final Account and Report of Trustee John Grimes, for Compensation and Petition for Final Distribution. This matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed Order has been submitted and will be executed by the Court. This matter is set for **Monday, July 6, 2026, at 2:30 p.m. in Department 44** to confirm the filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

IN RE: BONNIE JEAN MCFARLAND TRUST

CASE NUMBER: 26PB-0033285

This matter is on calendar for further proceedings on a Petition for Confirmation of Trust Assets. This matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears in order. The Court finds that Petitioner has established that the real property at issue is held by the Trust. The Petition is **GRANTED**. An Order was submitted and will be executed by the Court. The clerk is instructed to close the file upon the processing of the order. **No appearance is necessary on today's calendar.**

IN RE: DORMAN H. AND SHARON E. DENT REVOCABLE TRUST 2009

CASE NUMBER: CVPB21-0031299

This matter is on calendar for status and setting. **An appearance is necessary on today's calendar.**

IN RE THE FRANCES L. BENNETT REVOCABLE TRUST

CASE NUMBER: CVPB13-0027762

This matter is on calendar for further proceedings regarding a Petition for Instructions. The matter has been continued several times to allow additional time for the parties to finalize a pending settlement. No Status Report has been filed. **An appearance is necessary on today's calendar for status of settlement.**

IN RE: LANA FRYE AND ROBERT KEOUGH FRYE REVOCABLE TRUST

CASE NUMBER: 26PB-0033350

This matter is on calendar for hearing on a Petition for an Order to Confirm Validity of Trust, Confirm Trustee, and Confirm Assets to Revocable Trust. Petitioner seeks confirmation that the subject real property is an asset of the Trust. The Petition has not been verified as required by Probate Code Section 1021 and CRC 7.103. A copy of the Trust has been provided as Exhibit A; however, it appears to be missing pages. Due to the defect, the Court is unable to determine whether proper notice has been provided. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for an Order to Confirm Validity of Trust, Confirm Trustee, and Confirm Assets to Revocable Trust. An amended Petition is required to be filed to address the issue raised above. Petitioner is also required to file and serve a new Notice of Hearing to Determine Claim to Property for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: MARGIE ROSE JOSE FAMILY TRUST

CASE NUMBER: 26PB-0033361

This matter is on calendar for hearing on a Petition to Compel Accounting, Dispute Care Determination, and Right to Stay. The Petition has not been signed or verified, as required by Probate Code Section 1021 and CRC 7.103. There is no proof of service for David Guadagni. The proof of service filed for Attorney Arel is incomplete as to item 4(b), place of mailing. Additionally, a copy of the Trust has not been provided so the Court is unable to determine whether proper notice has been provided to all beneficiaries. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition to Compel Accounting, Dispute Care Determination, and Right to Stay. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: MAZZINI FAMILY TRUST, DATED FEBRUARY 27, 2003

CASE NUMBER: 24PB-0032717

This matter is on calendar for further proceedings on a Petition to Recover Trust Property. The Court previously continued this matter to allow the parties time to conduct discovery and obtain appraisals to facilitate settlement discussions. A Status Report has not been filed. **An appearance is necessary on today's calendar for status of discovery and possible setting of a contested hearing.**

IN RE: MILENEWICZ-PENTA LIVING TRUST

CASE NUMBER: 26PB-0033358

This matter is on calendar for hearing on a Petition to Appoint Successor Trustee. The matter has been properly noticed with proof of service on file. No objections have been raised. The verification on page 4 of the Petition is unsigned. Probate Code Section 15660.5 states that the Public Administrator may be appointed as trustee if, among other things, "after reasonable inquiry, no other qualified person is willing to act as trustee." The Petition fails to address whether an inquiry has been made and whether the Trustor's siblings are qualified to act as trustee. Additionally, Probate Code Section 15660.5 requires that "at the time of appointment and pursuant to the terms of the trust, the entire trust is then to be distributed outright." Section 9 of the Trust provides that distribution to a minor beneficiary shall either be (1) held in trust for that minor beneficiary, or (2) paid to the parent, custodian, or guardian of that minor beneficiary. The Petition fails to address whether the trust is to be distributed outright or held in trust for the minors. The Court will require a Guardian Ad Litem be appointed for the minor beneficiaries. The matter is continued to **Monday, July 6, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Appoint Successor Trustee. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. A Guardian Ad Litem is required to be appointed for the minor beneficiaries. **No appearance is necessary on today's calendar.**

IN RE: THE YERGENSON FAMILY REVOCABLE TRUST OF 2001, DATED AUGUST 30, 2001

CASE NUMBER: 26PB-0033338

This matter is on calendar for hearing on a Petition for Order Confirming Trust Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to establish that the Trustor intended to hold the subject property in Trust. The basis for the Petition is that, because the Trustor executed a pour-over will, he had a present intent to hold the subject property in the